

25STCV37815 25STCV37815

County: los-angeles

Division: Civil Law and Motion

Department: 408

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Case Number: 25STCV37815 Hearing Date: September 16, 2026 Dept: 408

Plaintiff David Mancia's Counsel Seung L. Yang, Brett M.

Gunther, and Nupur Apte's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed order.

I.

BACKGROUND

On December 23, 2025, Plaintiff

David Mancia ("Plaintiff") filed a complaint against Defendant VACT, Inc. ("Defendant") alleging causes of action for:

1.

FEHA Discrimination (Disability);

2.

FEHA Failure to Accommodate Disability;

3.

FEHA Failure to Engage in the Interactive Process;

4.

FEHA Retaliation;

5.

FEHA Failure to Take All Reasonable Steps to Prevent Discrimination and/or Retaliation;

6.

Violation of Lab. Code § 1102.5; and

7.

Violation of Lab. Code § 232.5.

On February 13,
2026, Defendant filed an answer to Plaintiff's complaint.

On August 19, 2026, counsel for
Plaintiff, Seung
L. Yang, Brett M. Gunther, and Nupur Apte
("Counsel"), filed: (1) MC-051, Motion to be Relieved as Counsel; (2)
Declaration in Support of Motion to be Relieved as Counsel; (3) MC-053,
Proposed Order; and (4) Proof of Service. No opposition or other responsive
pleading has been filed.

II.

LEGAL

STANDARD

"The attorney in an action or
special proceeding may be changed at any time before or after judgment or final
determination, as follows: 1. Upon the consent of both client and attorney,
filed with the clerk, or entered upon the minutes; 2. Upon the order of the
court, upon the application of either client or attorney, after notice from one
to the other." (Code Civ. Proc., § 284.)

An attorney moving to be relieved as
counsel under California Code of Civil Procedure section 284(2) must meet the
requirements set out in California Rules of Court, rule 3.1362. To comply with
Rule 3.1362, the moving party must submit the following forms: (1) Notice of
Motion and Motion to be Relieved as Counsel; (2) Declaration in Support of
Attorney's Motion to be Relieved as Counsel; and (3) Order Granting Attorney's
Motion to be Relieved as Counsel. (Cal. Rules of Court, Rule 3.1362, subd. (a),
(c), (e).) The moving party must serve the aforementioned forms on the client
and all other parties who have appeared in the case. (Cal. Rules of Court, Rule
3.1362, subd. (d).) Further, when the client is served by mail, the attorney's
declaration must show that the client's address was confirmed within the last

30 days and how it was confirmed. (Ibid.)

Absent a showing of resulting prejudice, an attorney's request for withdrawal should be granted. (People v. Prince (1968) 268 Cal.App.2d 398, 406.)

III.

DISCUSSION

Counsel's motion complies with the requirements of California Rules of Court, rule 3.1362, in that Counsel provided a motion to be relieved as Counsel; a declaration in support; a proposed order granting Counsel's motion; and proof of service as to Plaintiff.

The declaration states that there has been an irreparable breakdown in communication between Plaintiff and Counsel, including that Plaintiff has indicated that he no longer believes Counsel is acting in his best interest. (Apte Decl., ¶ 2.) Counsel sent Plaintiff a substitution of attorney form which Plaintiff refused to sign and Plaintiff has been aggressive with Counsel's staff during phone communications. (Ibid.)

The court determines that the requirements of Rule 3.1362 enumerated above have been sufficiently met. The court grants the requested withdrawal effective upon the filing of proof of service showing service of the signed order to Plaintiff.

IV.

CONCLUSION

Plaintiff

David Mancia's Counsel Seung L. Yang, Brett M. Gunther, and Nupur Apte's Motion to be Relieved as Counsel is GRANTED, effective upon the filing of proof of service showing service of the signed or